

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 9, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Mike Luna, Dicky Shanor and Jeff White. Absent: Pete Laybourn, Dr. Mark Rinne and Scott Roybal, Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Luna moved to approve, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on February 24, 2020. Motion (per Consent Agenda) carried.

[CA] Minutes from the Special Meetings of the Governing Body on February 20, 25, 2020. Motion (per Consent Agenda) carried.

Mayor Orr opened a public hearing for a retail liquor license renewal application filed with the City Clerk’s Office for Deep South LLC d/b/a Redwood Lounge, 2105 E. Lincolnway, Cheyenne, Wyoming. There being no comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing and referred the application to Finance Committee.

ORDINANCE – 3rd READING – Amending Chapter 5.52, Massage Establishments, within Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Mr. Shanor moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body present. (#4294)

ORDINANCE – 3rd READING – Amending Chapters 8.40, Food and Food Service Establishments, within Title 8, Health and Safety, of the Municipal Code of the City of Cheyenne, Wyoming, and Chapters 10.52, Stopping, Standing and Parking Generally, and 10.68, Critical Traffic and Parking Areas, within Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Shanor moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. (#4295)

ORDINANCE – 3rd READING – Amending Chapters 10.12, Administration and Enforcement, 10.16, Arrest and Citation Procedure, 10.52, Stopping, Standing and Parking Generally, 10.60, Parking Limitations, 10.64, Loading and Unloading, within Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Shanor moved to approve on third and final reading, seconded by Mr. Cook. Mr. Shanor moved to amend by substitute dated March 5, 2020 which includes City Attorney’s office technical corrections, seconded by Mr. Cook. Mr. White commended Joe Chenchar, City Attorney’s office, for his work on the ordinance. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#4296)

ORDINANCE – 2nd READING – Amending Section 10.12.130, City Traffic Engineer, of Chapter 10.12, Administration and Enforcement, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Shanor moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 2nd READING – Creating Section 2.04.200, Purchasing Policy, of Chapter 2.04, Mayor and City Council, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming. TJ Barttelbort, Purchasing Manager, provided information on the ordinance explaining it specifically provides guidelines for elected officials, department directors and employees who may be involved in the procurement process and addresses violations which may result in disciplinary actions. Mr. Barttelbort provided additional information on the Purchasing Policy explaining it is over 60 pages in length and receives occasional revisions and updates. Adopting just the forwarding of the policy allows future changes without needing to update the ordinance. He noted policy content has recently been revised and department directors have had a chance to review and submit comments/concerns. Upon inquiry, Michael O’Donnell, City Attorney, advised Administrative Procedure Act requirements don’t apply to the policy as it is not considered rules and regulations. Discussion followed and included: statutory requirements, possible situations involving procurements by elected officials and purchasing policy violations. Upon inquiry Mr. Barttelbort advised the purchasing policy has been reviewed by department directors and can be provided to the governing body. Reporting for Finance Committee, Mr. Luna moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, a portion of the South ½ of Section 36, T14N, R67W, 6th PM, Laramie County, Wyoming (located between Westland Road and I-25, adjacent to Crow Creek) – referred to Public Services Committee. (Sponsor – Mr. Case)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County LI (Light Industrial) to P (Public District) for a tract of land generally located west of Westland Road at Crow Creek – referred to Public Services Committee. (Sponsor – Mr. Case)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map of the Unified Development Code, changing the zoning classification from LI Light Industrial to MUB Mixed-Use Business Emphasis for Lots 5, 6, 7, and 8, Block 271, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of West 20th Street and Bent Avenue) – referred to Public Services Committee. (Sponsor – Mr. Case)

ORDINANCE – 1st READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 5.1.5.a-Detached Dwelling (“Single-Family”) Lot Types and Building Standards to reduce the required frontage of Detached Dwelling (“Single-Family”) lots for DD7: Detached Dwelling/Small Lot Type from 48 feet to 40 feet and from 60 feet to 45 feet on corner lots – referred to Public Services Committee. (Sponsor – Mr. Case)

[CA] RESOLUTION – Creating a Revolving Real Property Special Revenue Fund to account for the acquisition and resale of real property of the City of Cheyenne. Motion (per Consent Agenda) carried. (#6039)

[CA] RESOLUTION – Authorizing the City of Cheyenne to approve and file the Wyoming Division of Victim Services Funding Application State Fiscal Year 2021 and 2022, July 1, 2020 to June 30, 2022. Motion (per Consent Agenda) carried. (#6040)

RESOLUTION – Reappropriating the Fiscal Year 2020 Budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & §16-4-113. City Attorney Michael O’Donnell commented on the resolution noting some funding to be transferred to the Police Department from the Mayor’s discretionary account may no longer be available due to an employee raise, funding for Police Department special events security has already been accounted for and the Police Department is unsure of what the funding is for. Upon inquiry, City Treasurer Robin Lockman advised there hasn’t been an employee raise given as of yet and the funding is still there. She further explained an employee raise can be paid for out of local meetings and/or professional development accounts because transfer of line item funding is allowed in departments and done without governing body approval and, if needed, a future reappropriation can be done to account for the raise. Mr. Shanor provided information explaining in 2019 the Police Department charged \$210,000.00 for special events security. This resolution attempts to create a line item to be used for putting money towards small special event security needs. Comments were made related to how events are charged based on size and looking at improving the process for the future. Additional comments were made regarding the Police Department’s discretion of how funds are to be spent and what would determine equitable and fair charges for security services for special events. Mr. Shanor moved to adopt, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present. (#6041)

[CA] RESOLUTION – Authorizing the City of Cheyenne to accept as a gift a parcel of real property from JPK TR Cheyenne II, LLC – referred to Finance Committee. (Sponsors – MR. Roybal and Mr. White)

[CA] RESOLUTION – Supporting the City of Cheyenne Police Department to become accredited by the Commission on Accreditation for Law Enforcement Agencies – referred to Public Services Committee. (Sponsor – Mr. Laybourn)

[CA] CEREMONIAL RESOLUTION – In recognition of the Honorable Jim Lynch for his Dedication and Outstanding Contributions to the City of Cheyenne, Wyoming, and its Residents – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District Number One to provide transportation services for the Community Recreation & Events Summer Rec Camp Program (Recreation Program Fees). Motion (per Consent Agenda) carried. (#7152)

[CA] Agreement between the City of Cheyenne and Carbonhouse, LLC, d/b/a Carbonhouse, Charlotte, NC, for website design, development and website hosting services for the Cheyenne Events website (2015-2018 and 2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Sponsorship Agreement between the City of Cheyenne and Spradley Barr Toyota for the 2020-2021 Cheyenne Civic Center Broadway Series, Family Film Series Presenting Sponsor, Superday 2020 Kid Zone Exclusive Sponsor and as an Art Access Sponsor (revenue to the City) – referred to Finance Committee.

[CA] Sponsorship Agreement between the City of Cheyenne and HollyFrontier Cheyenne Refining LLC, to designate HollyFrontier as the presenting sponsor of Superday 2020, Superday Tour de Prairie and Superday 5k Walk/Run – referred to Finance Committee.

[CA] Human Services Agreement with United Way of Laramie County to provide services to various community programs (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Modification #2 to Contract #6986 between the City of Cheyenne and TC Solutions, LLC, for installation of approximately 42' of new sanitary sewer pipe necessary for the Splash Pad (General fund reserves) – referred to Finance Committee.

[CA] Consideration of Bid #E-6-20 for furnishing a minimum of three (3) to a maximum of ten (10), lift-equipped transit vehicles, for the City of Cheyenne, Transit Division. (FTA Transit Development Grant). Motion (per Consent Agenda) carried.

[CA] Consideration of Bid #E-12-20 for furnishing one (1) new handheld mass spec chemical detection system for gas/vapor, liquids and solids, with accessories for the City of Cheyenne, Cheyenne Fire & Rescue Department, Hazmat Division (Homeland Security Grant) – referred to Finance Committee.

[CA] Consideration of Bid #E-13-20 for furnishing one (1) new 2019-2020, 19,500 GVWR, cab & chassis with 45 foot aerial device body for the City of Cheyenne, Traffic Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-14-20 for furnishing two (2) new diesel powered 3-wheeled street sweepers with belt conveyors for the City of Cheyenne, Street & Alley Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Microbrewery liquor license application filed with the City Clerk's Office for Black Tooth Brewing Company, LLC d/b/a/ Black Tooth Brewing, 520 W. 19th St., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

[CA] Renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery, satellite distillery, winery and special malt beverage permits) filed with the City Clerk's Office. Motion (per Consent Agenda) carried.

No comments were made on the Voucher Report as presented.

Appointments of Trent Carroll to the Board of Adjustment and Tyler McLachlan to the Tourism Promotion Joint Powers Board. Mr. Luna moved to approve, seconded by Mr. White. Motion carried. Voting "yes" - all members of the governing body present with the exception of Mayor Orr who did not vote (mayoral appointments).

Under other business:

Mr. Cook noted the motion to adopt the following Resolution – Authorizing the Mayor and the City Clerk to sign a Final Plat for Alliance Addition, 4th Filing, a replat of a portion of Lot 1, Block 1, Alliance Addition, Cheyenne, Laramie County, Wyoming (located at the northwest corner of the intersection of Ridge Road and Jackson Street), failed at the February 24, 2020 City Council meeting. Having voted on the prevailing side and pursuant to Chapter 2.04 of City Code, Mr. Cook moved to reconsider the vote taken on the resolution, seconded by Mr. Luna. Motion carried. Voting "yes" – all members of the governing body present. Mr. Cook moved to postpone to March 23, 2020, seconded by Mr. Luna. Motion to postpone carried. Voting "yes" – all members of the governing body present.

Mayor Orr recognized former Councilman Don Pierson who was in attendance.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:26 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
March 18, 2020